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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
08/20/2026
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

SUPPLEMENTAL MPA

VEXATIOUS / CCP 391

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the vexatious-litigant relief opposed. To the extent the Court treats this paper as a response to new matter first raised on reply, Plaintiff requests leave under *Jay v. Mahaffey* (2014) 226 Cal.App.4th 1236, 1252-1253.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and

69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

4. The Court’s authority to consider the substance is under Code of Civil Procedure sections 391 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

5. This paper is submitted for the August 26, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300. It does not replace Plaintiff’s July 21-22, 2026 opposition.

Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

Plaintiff’s Supplemental Memorandum of Points and Authorities in Response to New Matter in Defendant’s August 19, 2026 Reply

I. INTRODUCTION AND LEAVE

Defendant’s August 19, 2026 reply and the accompanying Declaration of Tyler J. O’Connell attach Reply Decl. Exhibit A (an email compilation, including August 3-7, 2026 threads) and Reply Decl. Exhibit B (a SpotFund page). Those exhibits were not part of the moving papers served July 21, 2026. The reply also newly treats issues not briefed in A173827 as “finally determined” under section 391(b)(2). (Reply 2:13-28; 4:4-20.)

A reply may not raise new evidence or a new theory that the opposing party has had no opportunity to answer. (*Jay*, 226 Cal.App.4th at 1252-1253.) The Court may refuse the new matter or grant leave to respond. Plaintiff requests leave to the extent required and asks the Court to consider this short memorandum and the accompanying declaration as that response. This is not a second opposition. Plaintiff does not re-argue appeal A173827 and does not ask Department 302 to reverse any ruling of Judge Wong.

If the Court declines to consider Reply Decl. Exhibits A and B and the new forfeiture theory, this memorandum is unnecessary. If the Court considers them, the points below answer that new matter.

II. SECTION 391 TARGETS COURT FILINGS, NOT PRIVATE EMAIL TONE

Section 391(b)(2) requires relitigation against the same defendant after a final determination. (*Holcomb v. U.S. Bank Nat. Assn.* (2005) 129 Cal.App.4th 1494, 1504-1505.) Section 391(b)(3) requires unmeritorious court papers, unnecessary discovery, or tactics that are frivolous or solely intended to cause unnecessary delay, proved as flagrant abuse. Volume and adjectives are not enough. (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971-972.)

Plaintiff avers that the challenged emails were private meet-and-confer, service, and scheduling correspondence, not motions, pleadings, or other papers filed with this Court, and that Plaintiff did not file those emails as court papers. (Supp. Decl. paras. 13-15.) Private meet-and-confer tone is not a statutory element. Defendant's compilation, even if the Court dislikes selected sentences, is not a "filing" and does not satisfy section 391(b)(2) or (b)(3).

Access and speech, narrowly: the Constitution protects speech and petitioning, and status sanctions imposing security and statewide prefiling screening require strict statutory predicates. (Cal. Const., art. I, secs. 2, 3; *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169-1170.) Resting those sanctions on extra-judicial correspondence would regulate candid meet-and-confer rather than abusive court filings. Plaintiff has withdrawn any prior tone that fell below professional courtesy. (Supp. Decl. para. 18; filed Opp. Decl. para. 24.) Separately, a dispute over the scope of the Code of Civil Procedure section 425.16, subdivision (g) discovery stay is litigable, and litigating it is not section 391(b)(3) abuse. (Answering Reply 4:27-28.)

III. SECTION 391(B)(2) IS NOT SATISFIED

A. The forfeiture theory is new, and it is wrong. Reply 4:8-20 argues that because A173827 raises only Vehicle Code instruction issues, "anything but the jury instructions" is finally determined for section 391(b)(2). An action is not finally determined while it is pending on appeal, and A173827 is pending. (Code Civ. Proc., sec. 1049.) *Sander v. Superior Court* (2018) 26 Cal.App.5th 651, 670, concerns forfeiture of arguments not raised in the trial court, for purposes of that appeal; it is not a section 391(b)(2) preclusion rule, and it says nothing about relitigation

1 against a different defendant. California Rules of Court, rule 8.204 is a brief-contents rule; it ad-
2 judicates nothing. And even a final personal-injury judgment would not merge claims-handling
3 primary rights, because a judgment bars the same primary right, not every claim arising from a
4 shared factual nucleus. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-682; *Mycogen Corp. v.*
5 *Monsanto Co.* (2002) 28 Cal.4th 888, 904; *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th
6 788, 797-798.)

7 **B. The same-defendant element is missing, and Case No. CGC-25-631801 cannot supply it.**

8 Reply 4:4-5 answers the missing element by pointing to CGC-25-631801, which names Subhi Ab-
9 delhalim. This motion is CGC-25-631802, against CSAA Insurance Exchange. Section 391(b)(2)
10 reaches relitigation against the same defendant or defendants as to whom the prior litigation was
11 finally determined. (*First Western Development Corp. v. Superior Court* (1989) 212 Cal.App.3d
12 860, 868-870; Plaintiff's authorities RJN Item 17.) A different caption's defendant is not this
13 caption's defendant. Reply 4:8 also calls the personal-injury judgment "this Court's judgment";
14 Department 302 did not try CGC-21-594102.

15 **C. The supporting citation does not say what the reply says it says.** Reply 1:14-16 cites Opp.
16 5:22-6:4 for the proposition that the appeal concerns only Vehicle Code instructions. That passage
17 is Plaintiff's primary-right and wrong-defendant argument. The instructional discussion is at Opp.
18 6:11-17, which expressly states that Plaintiff does not ask this Department to reverse the Wong
19 ruling or to decide A173827. Plaintiff makes that correction and stops there. Plaintiff does not
20 expand on the merits of A173827.

21 **IV. INCOMPLETE COMPILATION**

22 Evidence Code section 356 requires that if part of a conversation or writing is received, the re-
23 mainder on the same subject may be inquired into. Defendant's Reply Decl. Exhibit A states
24 no counting method and no inclusion rule. It mixes A173827 / TrueFiling threads, service of
25 already-filed papers, a Code of Civil Procedure section 128.7(c)(1) withdraw request, and replies
26 to Defendant's own cease-filings and section 391 threat emails. (Supp. Decl. para. 14; Reply Decl.
27 Ex. A.)

28 The components are identifiable on the face of the exhibit. A173827 and TrueFiling correspon-

1 dence occupies Reply Decl. Ex. A, PDF pages 4 through 50. The July 27, 2026 section 128.7(c)(1)
2 request to withdraw this motion is at PDF page 51. Service of the July 22, 2026 filed papers is at
3 PDF page 55. The thread beginning at PDF page 81 contains defense counsel's own section 391
4 meet-and-confer text. (Supp. Decl. para. 14.) A compilation offered to prove Plaintiff's conduct,
5 which contains the movant's own demand letters and Plaintiff's statutory safe-harbor notice, is not
6 a complete corpus.

7 Defendant's count treats replies to Defendant's own correspondence as independent tactics. That
8 is incomplete. Plaintiff's already-lodged Exhibit B supplies samples of service, scheduling, and
9 meet-and-confer. Plaintiff's already-lodged Exhibits F through N supply Defendant's own April-
10 May 2026 emails. Plaintiff does not attach a new exhibit dump with this memorandum.

11 Reply Decl. Exhibit B is a public fundraising page. It is extra-judicial. It is not a pleading in this
12 case and is not a lawsuit against CSAA. It cannot supply the same-defendant element that section
13 391(b)(2) requires. (*Holcomb*, 129 Cal.App.4th at 1504-1505.) It is also unsupported as evidence.
14 Relevance requires a tendency in reason to prove a disputed fact of consequence, and offering the
15 page for the truth of its statements makes it hearsay. (Evid. Code, secs. 350, 1200.) The exhibit
16 shows no URL, no capture date, and no testimony identifying who printed it or establishing that
17 Plaintiff authored every sentence; the campaign text and an anonymous March 5, 2025 comment
18 at Reply Decl. Ex. B, PDF page 91 are not the same author. Offered to characterize Plaintiff rather
19 than to prove a statutory element, the page should be excluded under Evidence Code section 352.

20 **V. IMMUNITY AND PRIVILEGE: LIMITED JULY 1 SCOPE**

21 Defendant invoked Code of Civil Procedure section 425.16 and Civil Code section 47(b). The July
22 1, 2026 order applied those doctrines to a communication-framed First Amended Complaint. That
23 is not a claim-by-claim *Baral / Park* merits adjudication of empty-file and concealment primary
24 rights, and it is not a section 391(b)(2) relitigation of those rights. (*Baral v. Schnitt* (2016) 1
25 Cal.5th 376, 393-396; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th
26 1057, 1060; Code Civ. Proc., sec. 425.17(c); *JKC3H8, Inc. v. Colton* (2013) 221 Cal.App.4th
27 468.) Plaintiff does not ask this Department to reverse the July 1 order. Plaintiff asks the Court not
28 to treat continued effort to plead and discover non-communicative file-state facts as section 391

1 relitigation. (Supp. Decl. paras. 9, 13A.)

2 **VI. DRAFTING-METHOD LABELS**

3 Defense emails and papers describe Plaintiff’s filings as “AI-generated,” “AI-drafted,” “ChatGPT,”
4 and similar phrases. (Already-lodged Exs. G-J.) Allegations about drafting methods do not satisfy
5 section 391(b)(3). Plaintiff reviews, adopts, and takes responsibility for papers Plaintiff signs.
6 (Supp. Decl. paras. 13A(b), 16.) Notices of *JKC3H8* and section 425.17(c) discharge candor.
7 (Rules Prof. Conduct, rule 3.3(a)(2); *Morton*, 156 Cal.App.4th at 971-972.) They are not flagrant
8 abuse.

9 **VII. SEQUENCE, NOT A SLOGAN**

10 Opposition Theme [3] already uses deny-delay-defend versus open-court access. The observable
11 sequence is: February 2021 certification without 911 audio, body-worn camera footage, and CAD
12 records; then a three-motion stack (anti-SLAPP, demurrer, and a section 436 strike) against Plain-
13 tiff’s leave path; then an April 30, 2026 statement that counsel would move to have Plaintiff
14 deemed a vexatious litigant (already-lodged Ex. K); then this motion. (Supp. Decl. paras. 4,
15 11, 13B, 17.) Section 391 is not a substitute for file-state proof. (*Morton*, 156 Cal.App.4th at
16 971-972.)

17 The reply states that “Defendant filed a single Anti-SLAPP Motion” and that Plaintiff “responded
18 by filing three separate oppositions.” (Reply 4:25-27.) The record in this case is a stack, not a
19 single motion: the special motion to strike was filed April 9, 2026; the demurrer April 13, 2026;
20 the section 436 motion to strike April 22, 2026. Defendant also opposed leave to amend on April
21 23, 2026, and opposed leave for a third amended complaint on May 12, 2026. (Supp. Decl.
22 para. 11.) Oppositions that respond to separately noticed motions are obligated, not duplicative.
23 Authorship of that volume is not Plaintiff’s.

24 **VIII. SECURITY AND HARDSHIP: NOTICED DEMANDS ONLY**

25 Security under section 391.3 is available only after a vexatious finding and only if there is no
26 reasonable probability that the plaintiff will prevail. (*Shalant*, 51 Cal.4th at 1169-1170.) Dual
27 findings are required.

1 The noticed fee demand in this Case No. CGC-25-631802 is approximately \$32,928.27. The
2 noticed demand in Case No. CGC-25-631801 is \$35,973.00 in fees plus \$1,137.46 in costs, totaling
3 \$37,110.46. (Supp. Decl. para. 7.) Using unpaid medical bills and those fee demands as a
4 practical bar to court access, without the dual *Shalant* findings, would convert indigency into a
5 merits substitute. Plaintiff does not ask this Court to redetermine the personal-injury verdict.

6 The reply's probability showing is also not a careful record. Reply footnote 1 dates the Case
7 No. CGC-25-631801 anti-SLAPP grant August 6, 2026. The July 21, 2026 O'Connell declaration,
8 paragraph 9, dated the same event May 12, 2026. The Court may notice that orders exist; it should
9 not accept two different dates for one event as a reliable basis for a status sanction.

10 Nor are the reply's conclusions facts. That both cases have "concluded," and that they are "factually
11 identical," are inferences drawn from the orders, not matters subject to judicial notice. (Reply 5:5-9
12 and fn. 1.) An anti-SLAPP ruling is claim-by-claim; it does not adjudicate distinct institutional-
13 omission rights. (*Baral*, 1 Cal.5th at 393-396; *Park*, 2 Cal.5th at 1060.)

14 Plaintiff also preserves a stay objection. On August 14, 2026, Plaintiff filed a notice of appeal from
15 the July 1, 2026 order in this case (File and ServeXpress Tx 80347004) and a notice of automatic
16 stay in Department 302 (Tx 80347745). (Supp. Decl. para. 9A.) The perfecting of an appeal stays
17 enforcement of the order appealed from and of matters embraced in or affected by it. (Code Civ.
18 Proc., sec. 916; *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180.) To the extent
19 a section 391.3 no-probability finding would rest on the appealed July 1, 2026 order, Plaintiff
20 preserves the section 916 and *Varian* objection. Plaintiff does not contend that this Department has
21 lost power to hear the collateral section 391 motion.

22 One further note on the framing. Reply 3:17-19 states the questions as whether Plaintiff satisfies
23 section 391(b)(2) and (b)(3). Section 391(b) is disjunctive; Defendant has assumed a heavier
24 burden than the statute imposes, and has carried neither subdivision.

25 **IX. TWENTY-TWO PAPERS ARE NOT TWENTY-TWO OPPOSITIONS**

26 The reply says Plaintiff "filed no fewer than twenty-two (22) opposition papers" in two days. (Re-
27 ply 2:13-19.) The July 21-22 set is one opposition cohort: a memorandum plus the supporting pa-
28 pers California Rules of Court, rule 3.1113 contemplates. Counting companion instruments as 22

1 separate oppositions is the volume-adjective method *Morton* rejected. (*Morton*, 156 Cal.App.4th
2 at 971-972.)

3 **X. CONCLUSION**

4 The reply does not narrow the relief. It still asks for “all other relief as requested in the Proposed
5 Order.” (Reply 5:16-17.) That proposed order seeks blank security, security concurrent with any
6 new California action, and universal pre-service screening. Case-specific security is section 391.3;
7 statewide prefiling screening is section 391.7, with its own procedure. Re-asking for “all other
8 relief” does not supply either predicate. (*Shalant*, 51 Cal.4th at 1169-1170.) Plaintiff lodges the
9 proposed order denying the motion.

10 Plaintiff respectfully requests that the Court:

- 11 1. Refuse new reply exhibits and the new forfeiture theory, or alternatively grant this leave and
12 consider this memorandum and declaration as the response to that new matter;
- 13 2. Deny designation under Code of Civil Procedure section 391(b)(2) and (b)(3);
- 14 3. Deny security under section 391.3;
- 15 4. Deny the proposed statewide order, including blank-bond and universal pre-service screening
16 terms;
- 17 5. Grant such other relief as the Court deems just and proper.

18 Dated: August 20, 2026

19 

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